

"Civility allows for zealous representation, reduces clients' costs, better advances clients' interests, reduces stress, increases professional satisfaction, and promotes effective conflict resolution. These guidelines foster the civility and professionalism that are hallmarks of the best traditions of the legal profession."

OCBA Civility Guidelines

"The American legal profession exists to help people resolve disputes cheaply, swiftly, fairly, and justly. Incivility between counsel is sand in the gears."

(*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 747.)

TENTATIVE RULINGS
Judge Kimberly Knill, Dept. C31

- The court encourages remote appearances to save time, reduce costs, and increase public safety. Go to [Check-In Results - Orange County Superior Court](#) and click the blue box, "Click here to appear/check-in for Civil Small Claims/Limited/Unlimited/Complex remote proceedings." Navigate to Department C31 Judge Kimberly Knill.
- All hearings are open to the public.
- If you desire a transcript of the proceedings, you must provide your court reporter (unless you have a fee waiver and request a court reporter in advance).
- Call the other side. If everyone submits to the tentative ruling, call the clerk at 657-622-5231. Otherwise, the court may rule differently at the hearing. (See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

No filming, broadcasting, photography, or electronic recording of the video session is permitted pursuant to California Rules of Court, rule 1.150, and Orange County Superior Court rule 180.

HEARING DATE: Friday, 7/31/2026 10:00 AM

#	Case Name	Tentative
1	Matthew P. Wade, in his capacity as TRUSTEE of the ML Wade Family Trust under the provisions of a trust agreement dated September 12, 2013 vs. Scott English Plumbing Inc. 30-2024-01448700-CU-BC-CJC	Motion to Appear Pro Hac Vice The application of attorney Joseph L. McGlynn to appear pro hac vice as counsel for non-party intervening plaintiff Azguard Insurance Company in this matter is hereby DENIED. Mr. McGlynn states he has not filed any applications in Orange County, California. The rule requires disclosure of applications filed in the state, not merely in a particular county. (See Cal. Rules of Court, rule 9.40(d)(5).) The application is also premature. Mr. McGlynn seeks to appear pro hac vice to represent intervening plaintiff Azguard Insurance Company. However, Azguard is not

		yet a party to this action. Its motion to intervene will be heard on 8/7/2026. Clerk to give notice.
2	Pedroza vs. First National Insurance Company of America 30-2025-01529067-CU-PO-CJC	Motion to Be Relieved as Counsel of Record The motion of attorney Tina Abdolhosseini to withdraw as attorney of record for plaintiff Rosa Maria Pedroz is DENIED. Counsel did not sign the notice of motion or the supporting declaration and failed to check any of the boxes under items 3, 4, and 6 regarding service, the next hearing and trial, respectively. Counsel also failed to file a proof of service showing service on both Plaintiff and Defendant. (See Cal. Rules Court, rules 3.1300(c), 3.1362(d).) Clerk to give notice.
3	Spencer vs. Fowler 30-2026-01556002-CU-PO-CJC	Motion for Leave to File Amended Complaint Plaintiff Jessica L. Spencer's motion for leave to file a proposed first amended complaint is GRANTED. Plaintiff is ORDERED to designate the proposed amended complaint as the "first amended complaint" as required by California Rules of Court, rule 3.1324(a)(1) and to file the original and serve a copy within 5 days. Clerk to give notice.
4	Oh vs. Chen 30-2025-01521231-CU-CL-CJC	Motion to Set Aside/Vacate Default and Judgment Defendant Binbing Chen's motion for an order setting aside the entry of default and default judgment is DENIED. When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service. (<i>Summers v. McClanahan</i> (2009) 140 Cal.App.4th 403, 413.) The proof of service filed by plaintiff on November 24, 2025 shows defendant was personally served with the summons and complaint at her residence in Irvine on November 20, 2025. (ROA 19.) Service was effectuated by a registered process server, Fernando Garcia, and